

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows

Validation
of certain
marriages
heretofore
solemnized.

1.—(1) All banns of matrimony and marriages published and solemnized before the passing of this Act in the said Ellerker Chapel-of-Ease and in the said churches of Saint Mark, Marske-in-Cleveland, All Saints, Brightwaltham (otherwise Brightwalton) and Saint Mary, Great Ilford, shall be as valid as if they had been published and solemnized in a church duly consecrated and licensed for marriages.

(2) All marriages solemnized in the said Old Baptist Union Chapel at Grays Thurrock, in the district of Orsett, in the county of Essex, during the years aforesaid, shall be as valid as if the said chapel had been duly registered in accordance with the provisions of the above recited Act before the solemnization of those marriages.

(3) All banns published in the said Mission Room in the parish of Marrick since the month of September in the year eighteen hundred and ninety-three, and all marriages solemnized after those banns, shall be as valid as if the Mission Room had been duly licensed for the publication of banns.

(4) A minister who has solemnized any marriage to which this section refers shall not be liable to any proceedings for penalties whatsoever or to any ecclesiastical censure by reason of having solemnized the marriage.

(5) The register of the marriages so solemnized, or copies of the register, shall be received in all courts as evidence of those marriages in the same manner as registers of marriages duly solemnized, or copies thereof, are by law receivable in evidence.

Short title.

2. This Act may be cited as the Marriages Legalization Act, 1903.

CHAPTER 27.

An Act to authorise the Treasury to guarantee the payment of a Loan to be raised by the Transvaal, and to provide for the application of any sums paid by that Colony or the Orange River Colony towards the expenses incurred by His Majesty's Government in or incidental to the prosecution of the late war in South Africa.
[14th August 1903.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Power to
Treasury to
guarantee
loans.

1.—(1) The Treasury may, subject to the provisions of this Act, guarantee, in such manner as they think fit, the payment of the interest at a rate not exceeding three per cent. per annum on

any loan raised by the Transvaal for the purposes set out in the schedule to this Act, not exceeding in the aggregate an amount sufficient to raise thirty-five million pounds, and also the sinking fund payments for the repayment of the principal of the loan as fixed in accordance with this Act.

(2) A guarantee shall not be given in pursuance of this Act until the Government of the Transvaal have provided to the satisfaction of the Treasury and the Secretary of State—

(a) for raising, appropriating and duly applying the loan for the purposes and in the manner set out in the Schedule to this Act, subject to any arrangements which may be made for the application of savings on one head of expenditure to another head of expenditure :

(b) for the establishment and regulation of a sinking fund for the purpose of the repayment, within a period not exceeding fifty years from the first day of April nineteen hundred and four, of the principal of the loan :

(c) for charging on the general revenues and assets of the colony, or on any other revenues or assets which may be made available for the purpose, with priority over any charges not existing at the date of the passing of this Act, the principal and interest of the loan and any sinking fund payments for the repayment of the principal of the loan :

(d) for charging on the general revenues and assets of the colony, immediately after the last mentioned charge, the repayment to the Treasury of any sum issued out of the Consolidated Fund, under this Act, on account of the guarantee of the loan, with interest thereon at the rate of four per cent. per annum :

(e) for raising or securing the raising of sufficient money to meet the above charges.

(3) If any loan guaranteed under this Act is raised by stock, to which the Colonial Stock Act, 1877, applies, section nineteen of that Act shall not apply. 40 & 41 Vict.
c. 59.

(4) Every Act or ordinance of the Legislature of the Transvaal which in any way impairs the validity or priority of any such charge shall, so far as it impairs the same, be void, unless the consent of the Treasury and the Secretary of State has been previously obtained.

(5) Any sums required by the Treasury for fulfilling their guarantee, given under this Act, shall be charged on and issued out of the Consolidated Fund or the growing produce thereof, and any sums paid on account of the repayment of any amount so issued out of the Consolidated Fund shall be paid into the Exchequer.

(6) The Treasury shall lay before both Houses of Parliament a statement of any guarantee, given under this Act, and an account of any sums issued out of the Consolidated Fund for the purpose of any such guarantee, as soon as may be after any guarantee is so given or any sum is so issued.

2.—(1) Any sums repaid to His Majesty's Government by the Transvaal, out of the loan guaranteed under this Act, on account of temporary advances made on behalf of that colony or the Application of
contribution
towards war
expenses.

Orange River Colony during the late war shall, up to an amount of three million pounds, be paid into the Exchequer and, as to the balance, be paid to the National Debt Commissioners and applied by them towards the discharge of any Exchequer bonds or Treasury bills falling due during the financial year ending the thirty-first of March nineteen hundred and four.

(2) Any sums paid by the Transvaal as a contribution in respect of the expenses incurred by His Majesty's Government in or incidental to the prosecution of the South African war and any sums paid for a similar purpose by the Orange River Colony shall be paid to the National Debt Commissioners and applied by them in paying off, as occasion requires, any securities issued under the War Loan Act, 1900, or the Supplemental War Loan Act, 1900, or the Supplemental War Loan (No. 2) Act, 1900, or otherwise in reduction of debt.

(3) The National Debt Commissioners may invest temporarily any sums paid to them under this section which are not immediately required for the purpose for which they are to be applied.

Short title.

3. This Act may be cited as the South African Loan and War Contribution Act, 1903.

SCHEDULE.

I. Existing Liabilities :		£	£
A. Deficit of the Transvaal of 1901-2	-	1,500,000	
B. Former debt of the South African Republic	- - - -	2,500,000	
C. Compensation by the Transvaal and Orange River Colony to Loyalists in Cape Colony and Natal	- - - -	2,000,000	
			6,000,000
II. Acquisition of Existing Railways in the Transvaal and Orange River Colony	- -	—	14,000,000
III. Repatriation and Compensation in the Transvaal and Orange River Colony :			
A. Advances by way of Loan	-	3,000,000	
B. Other charges	• - - -	2,000,000	
			5,000,000
IV. New development in the Transvaal and Orange River Colony :			
A. New Railways	- - -	5,000,000	
B. Land Settlement	- - -	3,000,000	
C. Other Public Works	- - -	2,000,000	
			10,000,000
	Total	- -	£35,000,000